

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #05	CCRB Case #: 201609446	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/09/2016 11:00 AM	Location of Incident: § 87(2)(b) [REDACTED] and at the 46th Precinct stationhouse		18 Mo. SOL 5/9/2018		Precinct: 46
Date/Time CV Reported Thu, 11/10/2016 5:36 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 11/10/2016 5:36 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Catherine Thomas	23675	946318	046 PCT
2. SGT Jorge Carvajal	03493	932427	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Castro	18241	940910	046 PCT
2. SGT Francisco Hernandez	04408	936753	046 PCT
3. SSA Teresa Sadlier	05349	904981	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Catherine Thomas	Force: At § 87(2)(b) [REDACTED] Police Officer Catherine Thomas used physical force against § 87(2)(b) [REDACTED]	A . Unfounded
B . POF Catherine Thomas	Off. Language: At the 46th Precinct Stationhouse, Police Officer Catherine Thomas made remarks to § 87(2)(b) [REDACTED] based upon race.	B . Unsubstantiated
C . SGT Jorge Carvajal	Discourtesy: At the 46th Precinct Stationhouse, Sergeant Jorge Carvajal spoke discourteously to § 87(2)(b) [REDACTED]	C . Unsubstantiated
D . SGT Jorge Carvajal	Abuse: At the 46th Precinct Stationhouse, Sergeant Jorge Carvajal did not process § 87(2)(b) [REDACTED] complaint regarding an officer.	D . Unsubstantiated

Case Summary

On November 10, 2016, § 87(2)(b) filed this complaint with the CCRB via the call processing system. On that same day, § 87(2)(b) filed this complaint with IAB via phone, generating log number 16-39836. The complaint was received at the CCRB on November 17, 2016, via log number 2016-40291.

On November 9, 2016, at approximately 9:34 AM, § 87(2)(b) was contacted by a staff member at her daughter's § 87(2)(b), to inform her that she had been pushed. When § 87(2)(b) arrived at her daughter's school she was met by her boyfriend, § 87(2)(b), who she refused to identify by his actual name, at approximately 11:00 AM, she saw a parked police vehicle nearby with two officers in it; PO Catherine Thomas and PO Daniel Castro, each of the 46th Precinct. § 87(2)(b) explained to the officers what occurred, and that she was also experiencing problems with the school's personnel regarding an unresolved bullying issue with her son, who also attended § 87(2)(b) and asked them to accompany her inside to check on her daughter's welfare.

PO Castro agreed to accompany § 87(2)(b). PO Castro and PO Thomas escorted § 87(2)(b) and § 87(2)(b) inside. They all went to § 87(2)(b)'s classroom, got her from the class, and went downstairs to the conference room with § 87(2)(b)'s teacher, § 87(2)(b)'s principal, § 87(2)(b) and parent coordinator, § 87(2)(b). § 87(2)(b) joined everyone in the conference room [with the exception of § 87(2)(b), who remained outside of the room.] Principal § 87(2)(b) asked § 87(2)(b) to return § 87(2)(b) to her classroom. § 87(2)(b) became upset, and § 87(2)(b) and § 87(2)(b) left the conference room.

§ 87(2)(b) asked Principal § 87(2)(b) to address the bullying issue that was occurring with her son, and informed PO Castro that this was why she asked him and PO Thomas to accompany her; so that they "could witness the bullshit." § 87(2)(b) announced that she was leaving the conference as she walked to the door to exit the conference room. PO Castro asked § 87(2)(b) to hear what Principal § 87(2)(b) had to say about § 87(2)(b)'s son's issue and began to discuss it with Principal § 87(2)(b) at the table. § 87(2)(b) heard Principal § 87(2)(b) say that § 87(2)(b) requested a safety transfer from the Board of Education for § 87(2)(b) which she denied. § 87(2)(b) took two steps forward because she could not see them, and said, "I never requested-" when PO Thomas allegedly used one arm to push her back towards a corner (**Allegation A**). § 87(2)(b)'s arms were to her side when she stepped forward. PO Thomas made contact with § 87(2)(b)'s left shoulder. § 87(2)(b) asked PO Thomas, "What the fuck are you doing," and asked her why she put her hands on her when she has no right to do so. PO Thomas replied, "Yeah," and allegedly pushed § 87(2)(b) again, this time with both arms (within **Allegation A**).

PO Thomas handcuffed § 87(2)(b) and the officers escorted § 87(2)(b) out of the room. § 87(2)(b) asked why § 87(2)(b) was in handcuffs. PO Thomas explained that it was because § 87(2)(b) was being hostile, threatened Principal § 87(2)(b) in her presence, and was being arrested for § 87(2)(b). § 87(2)(b) was placed in PO Thomas' and PO Castro's RMP and brought to the 46th Precinct Stationhouse. During this time, § 87(2)(b) asked PO Thomas to let her go and stated that she did not understand why she was still holding onto her arm. PO Thomas then allegedly stated, "You people are always trying to get lawsuits," and began to write out a summons (**Allegation B**).

PO Thomas took § 87(2)(b) to the cell area. PO Thomas asked § 87(2)(b) to remove her coat belt and shoelaces. § 87(2)(b) complied and was escorted into the cell,

- § 87(2)(b)
- PO Catherine Thomas has been a member of the NYPD for nine years and has had two other CCRB allegations pleaded against her in two other cases. In CCRB Case 200815666, the Board substantiated and recommended Charges for a stop allegation. As of the date of this report, the NYPD disposition was guilty, and the penalty for the allegation was instruction. § 87(2)(g)
- Sgt. Carvajal has been a member of the NYPD for thirteen years and has had eleven other CCRB allegations pleaded against him in four other cases. None of Sgt. Carvajal's prior CCRB allegations were substantiated. § 87(2)(g)

Potential Issues

- On December 13, 2016, § 87(2)(b) was interviewed at the CCRB. At the conclusion of her interview, § 87(2)(b) refused to sign a verification form. Between December 15, 2016 and February 6, 2017, six phone calls were placed, nine non-automated text messages were sent, and a please-call letter was sent via mail and email to § 87(2)(b) to no avail. The letter was not returned to the CCRB by the US Postal Service. However, signed verification forms were provided by the investigation's witnesses, § 87(2)(b) and § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

In § 87(2)(b) phone statement, she described Sgt. Carvajal as a clean-shaven, Hispanic male with black hair, standing approximately 5'7" tall in uniform whose rank was sergeant, and whose name was possibly pronounced, "calvery" or "cavalry." In § 87(2)(b) CCRB testimony, she described Sgt. Carvajal as a male, possibly in his forties, with black hair, possibly brown eyes, and a medium build in a navy blue uniform, who was the "desk sergeant" (Board Review 03). Sgt. Carvajal closely matches the officer descriptions provided by § 87(2)(b)

In Sgt. Hernandez's CCRB testimony, he identified the desk sergeant he was temporarily relieving, while he was on lunch, as Sgt. Carvajal (Board Review 04).

According to the 46th Precinct's Second Platoon Roll Call from November 9, 2016, Sgt. Carvajal was assigned to desk duty and scheduled to work from 6:55 AM to 3:52 PM (Board Review 05). This is reflected in Sgt. Carvajal's memo book entry from the date of the incident (Board Review 06).

According to PO Kevin Calvelli's memo book, the only other male officer assigned to the 46th Precinct with a name similar to Sgt. Carvajal's, he was RDO on November 9, 2016 (Board Review 07).

Allegation A - Force: At § 87(2)(b) Police Officer Catherine Thomas used physical force against § 87(2)(b)

§ 87(2)(b) testified that while in the Parent Room of § 87(2)(b) in the Bronx, she stepped forward to reply to § 87(2)(b) as she could not see her or PO Castro at the time, and said, "I never requested-" when PO Thomas used one arm to push her back, making

contact with § 87(2)(b) left shoulder. § 87(2)(b) arms were to her side when she stepped forward. § 87(2)(b) asked PO Thomas, “What the fuck are you doing,” and asked her why she put her hands on her when she has no right to do so. PO Thomas replied, “Yeah,” and pushed § 87(2)(b) again, this time with both arms. § 87(2)(b) stated she did not threaten to assault any of the school staff, and did not say, “...I came over here to fuck you up,” to anyone during the incident.

PO Thomas testified that the first thing § 87(2)(b) said to her and PO Castro was, “I’m just letting you know, I’m going inside the school to fuck up some staff members.” PO Thomas instructed § 87(2)(b) numerous times throughout the incident, to stop threatening § 87(2)(b) and § 87(2)(b) in her presence, as did PO Castro. § 87(2)(b) did not comply, and continued to do so. PO Thomas believed § 87(2)(b) threatened to ‘fuck up’ § 87(2)(b) and § 87(2)(b) at least once, while looking at them, but did not believe it was more than five times. While in the school’s Parent Room, § 87(2)(b) walked up to both § 87(2)(b) and § 87(2)(b) and, standing less than a foot away from them, balled her first and used it to punch her other hand again, and remarked, “You know every time I come here, when I act like this, that’s how shit get done around here.” PO Thomas walked in front of § 87(2)(b) between her and § 87(2)(b) and placed her left hand on § 87(2)(b) right shoulder, and said, “Ma’am, we didn’t come here for that, don’t do that. We came to talk.” § 87(2)(b) replied, “OH! Oh, so now you’re assaulting me Officer Thomas? That’s what you’re doing, you’re assaulting me.” PO Thomas did not make any other physical contact with § 87(2)(b) besides placing a hand on her or walking her out to the RMP. PO Thomas did not make contact with § 87(2)(b) in a pushing or shoving motion during the incident (Board Review 08).

PO Castro testified that the first thing § 87(2)(b) said to him and PO Thomas was, “Thank God you guys are here because I was gonna go inside and fuck somebody up.” § 87(2)(b) tone throughout the incident was “loud,” and her demeanor, “angry.” While in the school’s Parent Room, § 87(2)(b) approached § 87(2)(b) stood in front of her, and said, “That’s how I get shit done. I’m gonna fuck you up,” with a gesture, a two-handed point, and then went to § 87(2)(b) and said, “I’m gonna fuck you up.” PO Castro noted that both § 87(2)(b) and § 87(2)(b) looked “nervous” and “afraid,” and neither of them became angry during the incident. PO Castro estimated § 87(2)(b) made this threat at least six to ten times before she was arrested. PO Castro did not observe PO Thomas make any physical contact with § 87(2)(b) prior to her being handcuffed [although he did not recall who handcuffed her] (Board Review 09).

Parent Coordinator § 87(2)(b) testified that the school nurse contacted § 87(2)(b) who began to yell and curse at her, and did not get a chance to explain what occurred. § 87(2)(b) asked the nurse to speak with § 87(2)(b) who began to yell and curse at her as well, saying things including: “I’m in school,” “I don’t want to hear you,” “you fucking bitch,” “my daughter better be okay,” and “you’re a fucking liar,” before hanging up the phone. While in the school’s Parent Room, § 87(2)(b) repeatedly said, she came and was present, “to fuck up two people,” referring to § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not observe either PO Thomas or PO Castro make physical contact with § 87(2)(b) before she was handcuffed. § 87(2)(b) did not hear § 87(2)(b) complain that an officer physically assaulted her or pushed her. § 87(2)(b) has personally observed § 87(2)(b) come to the school on several occasions, approximately

three times in the past year, consistently acting in the same manner displayed during the incident; upset and threatening people (Board Review 13).

Principal § 87(2)(b) testified that she was familiar with § 87(2)(b) as she is the mother of two students who currently attend § 87(2)(b) and she has interacted with § 87(2)(b) on previous occasions over the past four years due to matters relating to them. § 87(2)(b) described § 87(2)(b) demeanor during the prior encounters as “confrontational,” and noted that § 87(2)(b) would scream and use profanity. While in the school’s Parent Room, § 87(2)(b) remained “aggressive” and continued to lodge complaints until she said, “I came to fuck them up,” or “That’s why I came over here, because I was going to fuck them up.” § 87(2)(b) did not see PO Thomas make physical contact with § 87(2)(b) before she was handcuffed. § 87(2)(b) did not hear § 87(2)(b) make any remarks about an officer assaulting her (Board Review 14).

Both § 87(2)(b) and § 87(2)(b) prepared and submitted written statements, on the same date of the incident, for a NYC Department of Education Occurrence Report that were consistent with their CCRB testimonies (Board Review 10).

PO Thomas remarked on § 87(2)(b) summons, “Deft punched her fist into her hand and told the principal + school coordinator that’s why I came over here to fuck you up and you while getting in their face” (Board Review 15).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unfounded**.

Allegation B - Offensive Language: At the 46th Precinct Stationhouse, Police Officer Catherine Thomas made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) testified that after she was brought into the 46th Precinct, she was brought before the desk sergeant at the time, Sgt. Francisco Hernandez of the 46th Precinct. During this time, § 87(2)(b) asked PO Thomas to let her go and stated that she did not understand why she was still holding onto her arm. PO Thomas replied that § 87(2)(b) was being disorderly, and was getting a ticket for § 87(2)(b). PO Thomas then stated, “You people are always trying to get lawsuits.”

PO Thomas testified that while standing before the desk, as PO Thomas wrote down § 87(2)(b) pedigree information, § 87(2)(b) told Sgt. Hernandez, the desk officer on duty at the time, that PO Thomas assaulted her. PO Thomas believed Sgt. Hernandez asked § 87(2)(b) if she had any injuries. Sgt. Hernandez questioned PO Thomas and asked her to explain what § 87(2)(b) was referring to. PO Thomas informed Sgt. Hernandez that she did not assault anyone and explained what happened earlier during the incident. PO Thomas did not recall if Sgt. Jorge Carvajal of the 46th Precinct was nearby at the time. PO Thomas’ immediate supervisor, SSA Teresa Sadlier of the 46th Precinct, was not present during this time. PO Thomas did not recall saying, “You people are always trying to get lawsuits,” and § 87(2)(b) did not mention suing anyone or pursuing litigation during the incident.

PO Castro testified that when § 87(2)(b) was brought before the desk at the 46th Precinct Stationhouse, § 87(2)(b) was screaming and yelling. PO Castro did not hear PO Thomas say, “You people are always trying to get lawsuits.” PO Castro did not remember any conversations involving “lawsuits” or “litigation” taking place.

Sgt. Hernandez testified that he was in the midst of providing desk relief for Sgt. Carvajal, who was on meal at the time, when § 87(2)(b) who seemed upset and irrational, was brought into the 46th Precinct Stationhouse by PO Thomas and PO Castro. Sgt. Hernandez did not hear PO Thomas say, “You people are always trying to get lawsuits.”

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C - Discourtesy: At the 46th Precinct Stationhouse, Sergeant Jorge Carvajal spoke discourteously to § 87(2)(b)

Allegation D - Abuse of Authority: At the 46th Precinct Stationhouse, Sergeant Jorge Carvajal did not process § 87(2)(b) complaint regarding an officer.

§ 87(2)(b) testified that the entire time she was in a holding cell, she was “ranting” about the incident, and waved a belt in front of a camera and shouted, “Look what the stupid bitch did. She forgot to take my belt off.” § 87(2)(b) put her belt back on, sat down, and waited. PO Castro entered the cell area and asked § 87(2)(b) for her belt, but she refused to give it to him. PO Castro said alright, and walked away. § 87(2)(b) continued to rant; asking why she was here and to be let out. Sgt. Carvajal then entered the cell area, and said to § 87(2)(b) “If you want to get the fuck out of here, you gotta stop screaming. I don’t want to hear nothing about the officer assaulting you. I don’t want to hear that shit. Stop saying that. You’re going to get a ticket and you’re going to get out of here.” § 87(2)(b) said, “But she assaulted me,” and Sgt. Carvajal replied, “I don’t want to hear that,” as he began to walk away. Eventually, Sgt. Carvajal said if § 87(2)(b) calmed down and stayed quiet, she would be out of the stationhouse in time to pick up her children from school. § 87(2)(b) explained her situation to Sgt. Carvajal, but he maintained that she needed to remain calm and that he did not want to hear any more noise.

Sgt. Carvajal testified that he was on the second floor of the stationhouse in the locker room, located above the cell area, on meal when he began to hear banging from the cell area and the screams of a female individual. Sgt. Carvajal assumed it was a prisoner, he remained upstairs. The screaming continued intermittently and Sgt. Carvajal returned downstairs at the completion of his meal. Sgt. Carvajal did not enter the cell area; the first time he interacted with § 87(2)(b) was as she was leaving, and there was no conversation between them during that time. Sgt. Carvajal noted he did not instruct any officers to enter the cell area to speak to § 87(2)(b) and § 87(2)(b) did not attempt to detail the incident to him or allege that she was assaulted. Using the stationhouse cameras, Sgt. Carvajal observed PO Castro enter the cell area and interact with § 87(2)(b). Sgt. Carvajal estimated PO Castro remained back there for approximately one minute. Sgt. Carvajal did not recall seeing anyone else speak to § 87(2)(b) in the cell area. Sgt. Carvajal did not say, “If you want to get the fuck outta here, you gotta stop screaming,” or “I don’t want to hear nothing about the officer assaulting you. I don’t want to hear that shit.” Sgt. Carvajal did not have any discussion with § 87(2)(b) informing her that she would get a ticket (Board Review 11).

PO Thomas testified that she placed § 87(2)(b) into a cell and checked on her intermittently during the duration of her stay in it. § 87(2)(b) began to scream, bang on the cell door, and shake the cell door after she was placed inside of a cell. PO Thomas went to her office, which is situated slightly beyond the cell area, to fill out paperwork related to § 87(2)(b) in the meantime. While in the office, PO Thomas could hear § 87(2)(b) continuing to scream and yell. PO Castro entered the office and told PO Thomas that § 87(2)(b) was “irate,” and other officers continued to enter the cell area to tell § 87(2)(b) that she had to stop behaving in the manner she was, and that she would get a summons, and be released. PO Thomas did not know who spoke to § 87(2)(b) how many times, or whether it was the desk officer. PO Thomas did not remember if she ever became aware that Sgt. Carvajal interacted with § 87(2)(b). PO Thomas did not remember seeing or recall having any discussions with Sgt. Carvajal during the incident. PO Thomas did not hear Sgt. Carvajal say, “If you want to get the fuck out of here you gotta stop screaming,” and § 87(2)(b) did not mention anything to PO Thomas regarding an interaction of that nature. PO Thomas did not say, or hear any officer state, “I don’t want to hear nothing about the officer assaulting you. I don’t want to hear that shit.”

PO Castro testified that he recalled entering the holding cell area, alone, to speak to § 87(2)(b) but he did not recall what he said to her or what the substance of the conversation regarded. PO Castro noted it was possible that he may have gone back there because § 87(2)(b) was yelling, but he could not say for sure. PO Castro did not know whether any other officers entered the holding cell area to speak to § 87(2)(b) or address her behavior in the holding cell. PO Castro did not hear any other officers discussing § 87(2)(b) behavior and did not have any discussions with Sgt. Carvajal, or any other officers, about § 87(2)(b) behavior.

Sgt. Hernandez testified that he did not enter the cell area. Sgt. Hernandez did not say, or hear another officer say, “If you want to get the fuck out of here, you gotta stop screaming,” or, “I don’t want to hear nothing about the officer assaulting you. I don’t want to hear that shit.”

According to the 46th Precinct’s Prisoner Holding Pen Roster, § 87(2)(b) was the only prisoner in the holding cells during the duration of her stay (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** and **Allegation D** be closed as **Unsubstantiated**.

Signature	Print	Date
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